



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

June 29, 2012

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 15620

EXPIRATION DATE: March 31, 2013
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1. GRANTEE: Radio Systems Corp
Knoxville, TN
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the transportation in commerce by motor vehicle of approximately 36,000 non-DOT specification containers filled with 1,1,1,2-Tetrafluoroethane. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
 - d. This special permit will not be renewed.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304(a) in that non-DOT specification containers are not authorized, except as specified herein.
5. BASIS: This emergency special permit is based on the application of Radio Systems Corp dated April 13, 2012, submitted in accordance with § 107.117, and additional

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information dated May 22, 2012 and June 1, 12, 15, and 19, 2012 and a determination that it is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
1,1,1,2-Tetrafluoroethane or Refrigerant gas R 134a	2.2	UN3159	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are non-DOT specification, non-refillable metal containers with a capacity of 210 ml (7.1 ounces) and a minimum design burst pressure of 18 bar. Containers must be manufactured in accordance with Metaprint Aerosol Can Specification on file with the Approvals and Permits Division.

b. TESTING - Each container must be production leak tested by the manufacturer with an inline micro leak tester. Each container must be filled with 10 bar (145 psig of pressure). If any container shows evidence of leakage at a rate equal to or greater than 3.3×10^{-2} mbar.l.s⁻¹ at the test pressure, distortion or other defect, it must be rejected.

c. OPERATIONAL CONTROLS -

(1) This special permit only authorizes the transportation in commerce of containers in stock within the United States. Transportation must be from the warehouse where containers are stored to Retail Distribution Centers within the United States.

(2) Containers must be packaged as follows: six clamshell containers per fiberboard box (clamshell contains one can), or six cans in a fiberboard box.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. No new manufacture of containers is authorized under the terms of this special permit.

d. This special permit will not be renewed.

e. The outside of each fiberboard box must be plainly and durably marked "DOT-SP 15620". The can is not required to be marked with the special permit number.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: CWF/BURKHARDT